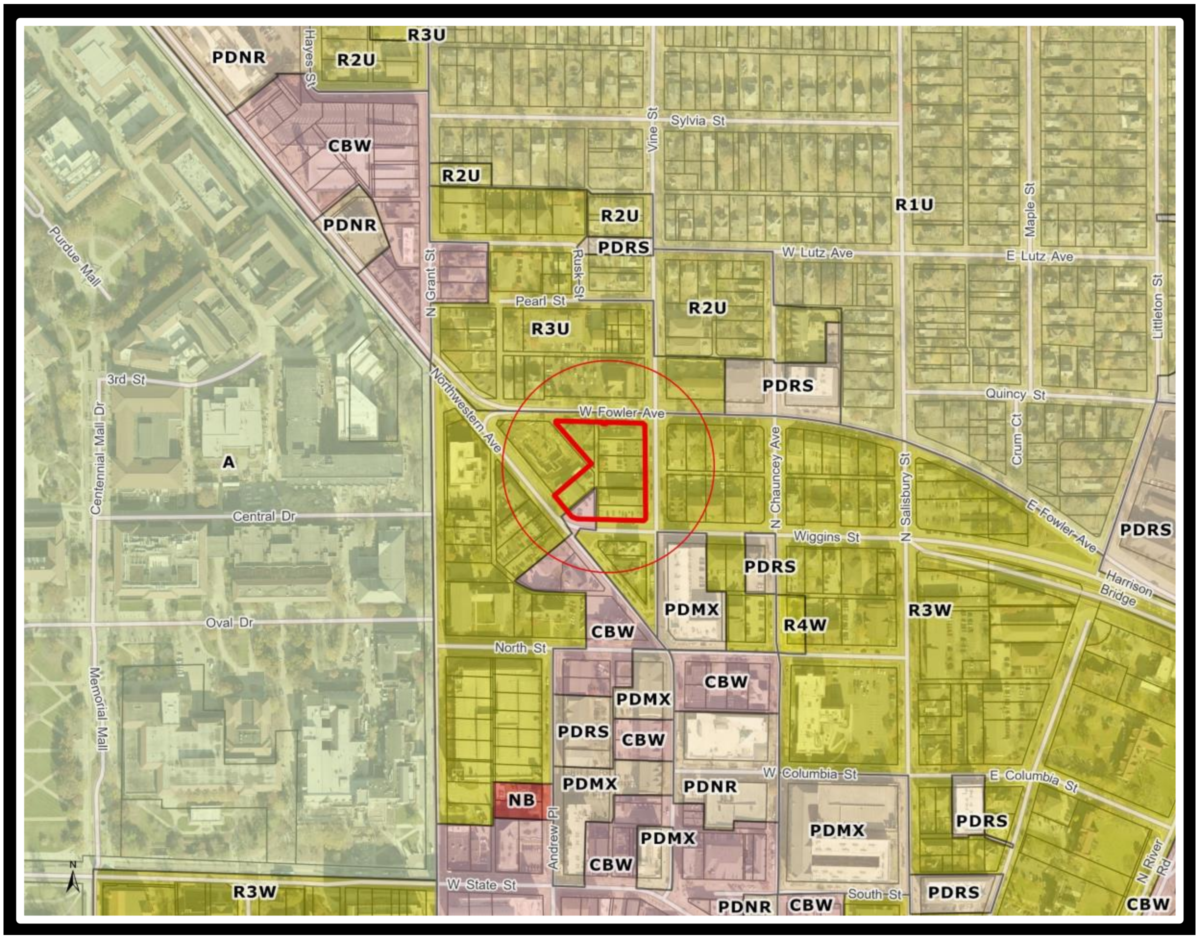
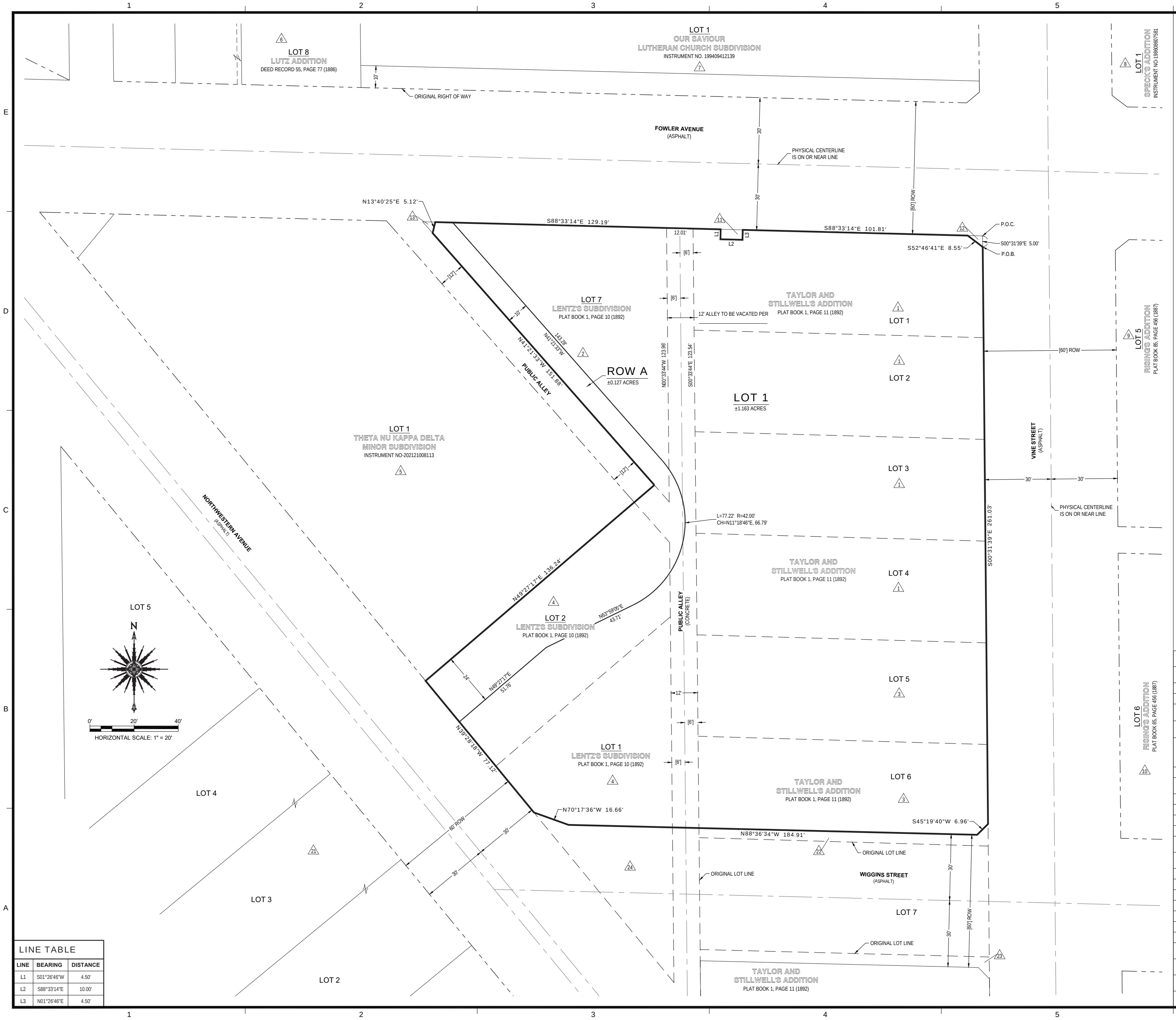
Z-2848
4-UP, LLC – SHANE O'MALLEY
(4-Up Planned Development)
(R3W & CBW to PDMX)

STAFF REPORT
August 11, 2022



PRELIMINARY PLAT
4-UP
PLANNED DEVELOPMENT



LINE TABLE

LINE	BEARING	DISTANCE
L1	S01°26'46"W	4.50'
L2	S88°33'14"E	10.00'
L3	N01°26'46"E	4.50'

LEGAL DESCRIPTION

Lot Two (2) and a part of Lots One (1) and Seven (7) in Lentz's Subdivision of A.B. McLains Addition to the Town of Chauncey now West Lafayette, recorded February 25th, 1892 in Plat Book 1, Page 10 in the Office of the Tippecanoe County Recorder and Lots Two (2), Three (3), Four (4), Five (5) a part of Lots One (1) and Six (6) in Taylor and Stillwell's Addition to West Lafayette, recorded September 20, 1892 in Plat Book 1, Page 11, all located in the Northeast Quarter of Section Nineteen (19), Township Twenty-three (23) North, Range Four (4) West, City of West Lafayette, Wabash Township, Tippecanoe County, Indiana; being described as follows by Clem S. Kuns (LS20900172) of TBIRD Design Services Corp, Project Number 21042:

Commencing at the northeast corner of Lot One (1) in said Taylor and Stillwell's Addition; thence along the east line of said lot, South 00°31'39" East, 5.00 feet to the south corner of the State of Indiana real estate recorded in Deed Record 263, Page 397 and the Point of Beginning; thence continuing along the east line of said Taylor and Stillwell's Addition, South 00°31'39" East, 261.03 feet to the north corner of the State of Indiana real estate recorded in Deed Record 264, Page 443, said point being 10.00 feet northerly of the southeast corner of Lot Six (6) in said Addition; thence along said State of Indiana real estate, South 45°19'40" West, 6.96 feet; thence along said State of Indiana real estate and along the State of Indiana real estate recorded in Deed Record 263, Page 112, North 88°36'34" West, 184.91 feet; thence continuing along said State of Indiana real estate, North 70°17'36" West, 16.66 feet to the southwest line of Lot One (1) in Lentz's Subdivision; thence along the southwest line of Lot One (1) and Lot Two (2) in said Lentz's Subdivision, North 39°28'18" West, 77.12 feet to the northwest corner of said Lot 2; thence along the northwest line of said lot and the extension thereof, North 49°27'17" East, 136.24 feet to a point on the southwest line of said Lot 7; thence along said southwest line, North 41°21'33" West, 151.88 feet to the south corner of the State of Indiana real estate recorded in Deed Record 262, Page 579; thence along the east line of said real estate, North 13°40'25" East, 5.12 feet to the north line of said Lot 7 and the south right-of-way of Fowler Avenue; thence along said right-of-way, South 88°33'14" East, 129.19 feet to the northwest corner of the State of Indiana real estate recorded as Instrument Number 199209201762; thence along said State of Indiana real estate for the following three (3) courses: (1) South 01°26'46" West, 4.50 feet; (2) South 88°33'14" East, 10.00 feet; (3) North 01°26'46" East, 4.50 feet to said Fowler Avenue right-of-way; thence along said right-of-way and the north line of Lot One (1) in said Taylor and Stillwell's Addition, South 88°33'14" East, 101.81 feet to the west corner of the State of Indiana real estate recorded in Deed Record 263, Page 397; thence along the southwest line of said real estate, South 52°46'41" East, 8.55 feet to the Point of Beginning, containing, 1.29 acres, more or less.

SUBJECT TO ALL OTHER EASEMENTS, RESTRICTIONS, AND RIGHTS-OF-WAY OF RECORD

LAST INSTRUMENT CONVEYING TITLE TO SUBJECT PROPERTY:

See Title Index Below (ID 1, 2, 3, 4).

LAND SURVEYOR'S CERTIFICATE

The undersigned, a Registered Professional Land Surveyor of the State of Indiana does hereby certify that the above preliminary plat was prepared under his direct supervision.

CERTIFIED BY:

John C. Nagy, PS
Date

SURVEY NOTE

This drawing does not represent a boundary survey of the property depicted. This plat has been prepared pursuant to Section B-1 (Preliminary Plats for PD Submissions), of the Unified Zoning Ordinance of Tippecanoe County, Indiana as adopted January 2, 1998 (amended) and is based on record boundary survey document by TBIRD Design Services Corp. Project #21042, recorded as Instrument Number 202121023534.

TITLE INDEX X

ID	OWNER	PARCEL ID	RECORD INSTRUMENT
1	TOMISH DEVELOPERS LLC	79-07-19-283-002.000-026	202121026970
2	TOMISH DEVELOPERS LLC	79-07-19-283-001.000-026	202121024105
3	SUPERIOR CONCEPTS INDUSTRIAL LLC	79-07-19-283-003.000-026	202121025397
4	SUPERIOR CONCEPTS INDUSTRIAL LLC	79-07-19-283-005.000-026	202121025397
5	THETA NU HOUSING, LLC	79-07-19-287-001.000-026	202020015010 202020015012 202020015015 202020015016
6	10 OWNER, LLC	79-07-19-233-006.000-026	201919004750
7	OUR SAVIOUR EVANGELICAL LUTHERAN CHURCH	79-07-19-233-009.000-026	199409412139
8	MORRIS RENTALS, LLC	79-07-19-232-033.000-026	201010013220
9	WYNSTON PROPERTIES, LLC	79-07-19-279-009.000-026	202020021901
10	WALRUS 6, LLC, ETAL	79-07-19-279-001.000-026	201515012139
11	STATE OF INDIANA	79-07-19-283-010.000-026	199209201762
12	STATE OF INDIANA	N/A	DEED RECORD 263, PAGE 397
13	STATE OF INDIANA	N/A	DEED RECORD 262, PAGE 579
14	CITY OF WEST LAFAYETTE	79-07-19-283-009.000-026	201515012958
15	WIND RENTALS, LLC	79-07-19-284-001.000-026	201818009641
16	TWIN VIEW, LLC	79-07-19-284-002.000-026	199609600367
17	VINE & NORTH, LLC	79-07-19-276-012.000-026	201717008075
18	CITY OF WEST LAFAYETTE	79-07-19-285-004.000-026	
19	STEPHEN L CLAWSON	79-07-19-285-010.000-026	199309313331
20	WEIDA HOLDINGS, LLC	79-07-19-285-003.000-026	2016160248084
21	DELTA DELTA OF DELTA SIGMA PHI HOUSE CORPORATION	79-07-19-285-002.000-026	200101000203
22	STATE OF INDIANA	N/A	DEED RECORD 264, PAGE 442
23	STATE OF INDIANA	N/A	DEED RECORD 263, PAGE 443
24	STATE OF INDIANA	N/A	DEED RECORD 263, PAGE 112

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Design Services Corporation
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CERTIFIED BY:

Not For Construction

07/14/2022 6:21:42 PM

4-UP PLANNED DEVELOPMENT
FOR
TOMISH DEVELOPERS, LLC
822 MAIN ST, LAFAYETTE, IN 47901

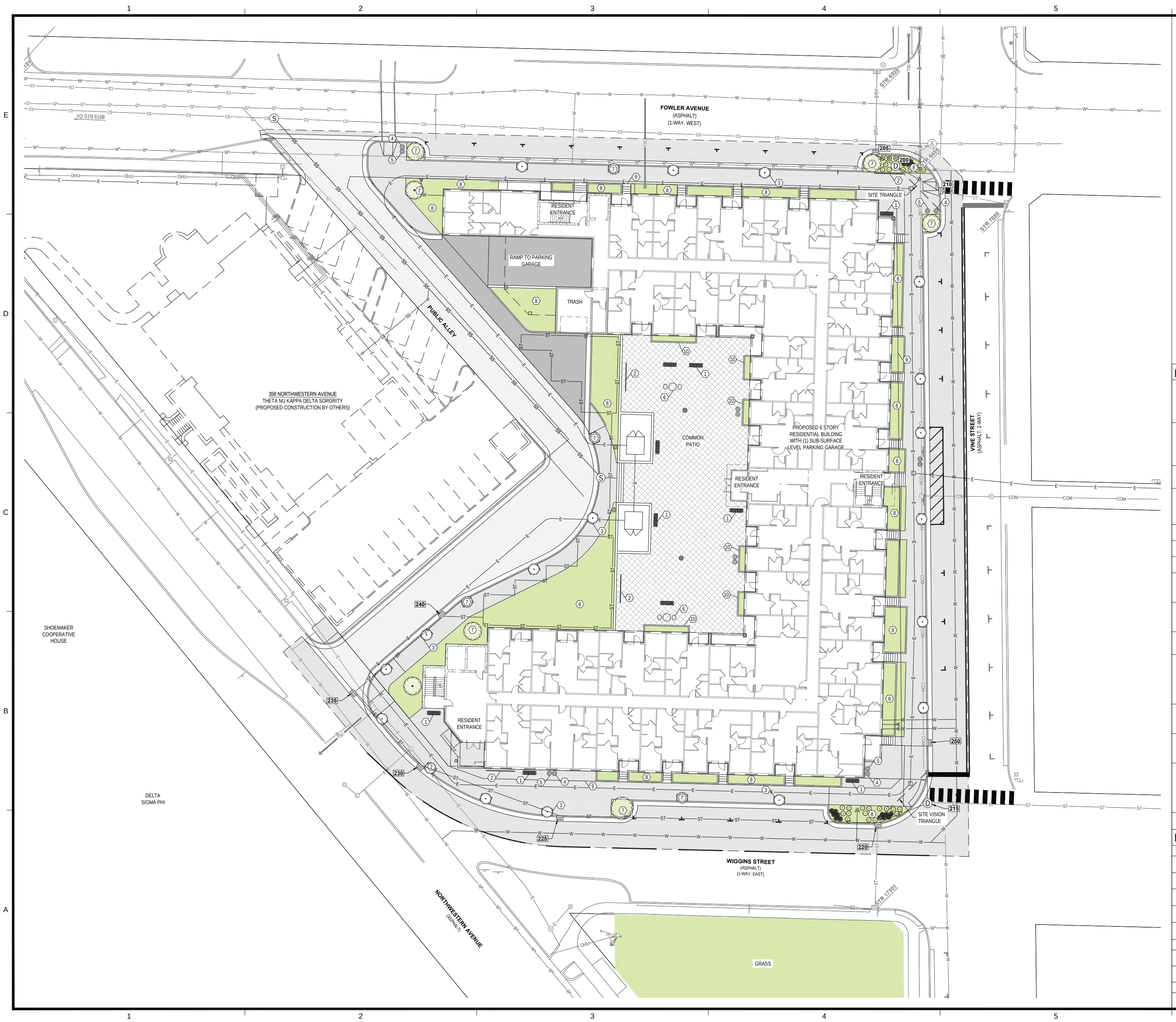
MARK	DATE	DESCRIPTION
	07/14/2022	PLANNED DEVELOPMENT - PRELIMINARY PLAN

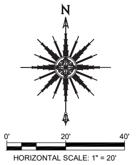
PROJECT NO: 21042
FILE: 21042-SURVEY PP.DWG
DRAWN BY: HTKN
CHECKED BY: CSK
LOCATION:
A PART OF THE NORTHEAST QUARTER OF SECTION 19, TOWNSHIP 23 NORTH, RANGE 4 WEST, CITY OF WEST LAFAYETTE, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA

TITLE:
PRELIMINARY PLAT

C104

FILE: P:\2021\21042 OMalley Fowler Vine\DRAWINGS\SURVEY\21042-SURVEY PP.dwg - USER: MARSHALL G. FILBRUN - DATE: Thursday, July 14, 2022 6:10:39 PM





NOTES

1	PROPOSED PLANTINGS SHALL BE IN COMPLIANCE WITH THE CITY OF WEST LAFAYETTE TREE MANUAL. THE LOCATIONS OF TREES AND LANDSCAPE AREAS ARE DESIGNATED ON THE PRELIMINARY PLAN. SPECIFIC SPECIES AND LOCATIONS OF ALL SHRUBS AND OTHER PLANTING MATERIALS SHALL BE DETAILED ON THE FINAL DETAILED PLANS AND SHALL BE REVIEWED AND APPROVED BY THE CITY OF WEST LAFAYETTE GREENSPACE ADMINISTRATOR.
2	ALL SHRUB PLANTING AREAS TO BE COVERED WITH 3" THICK LAYER OF SHREDDED HARDWOOD BARK MULCH. ALL PERENNIAL BEDS SHALL BE COVERED WITH 1" SHREDDED HARDWOOD BARK MULCH. BARK MULCH SHALL BE APPROVED BY LANDSCAPE ARCHITECT AND SHALL BE UNIFORM IN TEXTURE AND COLOR AND SHALL BE OBTAINED FROM SAWMILL OR LUMBERING OPERATIONS. NO UTILITY MULCH OR PROCESSED TREE TRIMMINGS WILL BE ALLOWED.
3	AN APPROVED PRE—EMERGENT HERBICIDE SHALL BE APPLIED IN ALL PLANTING AND GROUND COVER BEDS AT RATES SPECIFIED BY MANUFACTURER FOR EACH VARIETY OF PLANT.
4	FINAL PLACEMENT OF PLANT MATERIALS, ETC. SHALL BE APPROVED BY LANDSCAPE ARCHITECT AND THE WEST LAFAYETTE GREENSPACE ADMINISTRATOR BEFORE PLANTING OPERATIONS ARE TO PROCEED. ALL TREE LOCATION SHALL BE MARKED WITH A WOODEN STAKE INDICATING VARIETY AND SIZE OF TREE. ALL STAKES SHALL BE REMOVED FOLLOWING PLANTING OPERATIONS.
5	SUBSTITUTIONS OF PLANT MATERIAL WILL BE ALLOWED WITH THE APPROVAL OF THE GREENSPACE ADMINISTRATOR PRIOR TO CHANGES BEING MADE.
6	ALL PLANTS ARE TO MEET OR EXCEED THE MOST CURRENT EDITION OF THE WEST LAFAYETTE CITY STANDARDS.
7	PLANTS AND ALL OTHER MATERIALS TO BE STORED ON SITE WILL BE PLACED WHERE THEY WILL NOT CONFLICT WITH CONSTRUCTION OPERATIONS AND AS DIRECTED BY OWNER.
8	ALL NEW LANDSCAPE PLANTING SHALL BE GUARANTEED FOR A PERIOD OF ONE YEAR FOLLOWING FINAL INSPECTION BY LANDSCAPE ARCHITECT. AT THE END OF THIS PERIOD, PLANT MATERIAL TERMED DEAD OR UNSATISFACTORY BY LANDSCAPE ARCHITECT SHALL BE REPLACED AT NO ADDITIONAL CHARGE BY THE LANDSCAPE CONTRACTOR.
9	PEAT MOSS TO BE USED ON PROJECT SHALL BE A DOMESTIC OR IMPORTED MATERIAL, CHOCOLATE BROWN IN COLOR AND COMPOSED OF PARTIALLY DECOMPOSED VEGETABLE MATERIAL PEAT MOSS TO ALSO BE MILDLY ACIDIC IN CHARACTER AND SHALL MEET APPROVAL OF LANDSCAPE ARCHITECT.
10	LANDSCAPE CONTRACTOR SHALL NOTIFY LANDSCAPE ARCHITECT & CITY OF WEST LAFAYETTE GREENSPACE ADMINISTRATOR THAT THEY FEEL MAY NOT SURVIVE IN LOCATIONS NOTED.
11	ALL LANDSCAPING PLANTINGS TO BE MAINTAINED FOR 60 DAYS FOLLOWING FINAL INSPECTION BY LANDSCAPE ARCHITECT. ALL SEEDED LAWNS TO BE MAINTAINED FOR A PERIOD OF 60 DAYS AND SODDED LAWNS 30 DAYS FOLLOWING FINAL INSPECTION BY LANDSCAPE ARCHITECT AFTER WRITTEN REQUEST FROM LANDSCAPE CONTRACTOR. MAINTENANCE TO INCLUDE WATERING WEEDING, CULTIVATION, MULCHING, MOWING AND ALL OTHER NECESSARY OPERATIONS REQUIRED FOR PROPER ESTABLISHMENT OF LAWNS AND PLANTINGS.
12	BACKFILL FOR SHRUB PLANTING SHALL BE 75% APPROVED TOPSOIL AND 25% APPROVED PEAT MOSS. TOP LAYER OF BACKFILL SHALL BE 100% TOPSOIL. A SLOW RELEASE FERTILIZER BASED UPON SOIL ANALYSIS SHALL BE INCORPORATED INTO BACKFILL AT APPROVED RATES.
13	PROVIDE MINIMUM 6" PLANTING SOIL IN ALL GROUND COVER AND FLOWER AREA WITH A MIXTURE COMPRISED OF ONE PART COMPOSTED MANURE, 5 PARTS TOPSOIL AND 4 PARTS PEAT MOSS. A FULL 4" LAYER OF APPROVED SHREDDED FIBROUS PEAT MOSS MAY BE USED IN LIEU OF PLANTING MOSS.
14	IT IS THE LANDSCAPE CONTRACTOR'S RESPONSIBILITY TO NOTIFY ALL UTILITY COMPANIES 72 HOURS BEFORE CONSTRUCTION IS TO START TO VERIFY IF ANY UTILITIES ARE PRESENT ON SITE. ALL VERIFICATIONS (LOCATIONS, SIZE AND DEPTH) SHALL BE MADE BY THE APPROPRIATE UTILITY COMPANIES. WHEN EXCAVATIONS AROUND OR OVER EXISTING UTILITIES, THE CONTRACTOR MUST NOTIFY THE UTILITY COMPANY SO A REPRESENTATIVE OF THE UTILITY COMPANY CAN BE PRESENT TO INSTRUCT AND OBSERVE DURING THE EXCAVATION.
15	NO LANDSCAPE PLANTINGS SHALL BE PERMITTED TO OBSCURE VISIBILITY OF AND ACCESS TO FIRE HYDRANTS, FIRE DEPARTMENT CONNECTIONS, AND POST INDICATOR VALVES

LANDSCAPE KEYNOTES ⬡X

ID	DESCRIPTION	MODEL/ SPECIES
1	BENCH (TYP)	COLUMBIA CASCADE CO.; RENAISSANCE #2802-6, WITH SIDE ARMS, BLACK FINISH
2	BIKE LOOP	COLUMBIA CASCADE CO.; CYCLOOPS #2170-15-P, BLACK FINISH
3	TREE GRATE (TYP)	URBAN ACCESSORIES; JAMISON, DUCTILE IRON 36INX60-IN, BLACK POWDER COATED FINISH
4	TRASH RECEPTACLE	LANDSCAPE FORMS; PLEXUS LITTER, TOP OPENING, FREESTANDING, SURFACE MOUNT, BLACK FINISH
5	RECYCLING RECEPTACLE	LANDSCAPE FORMS; PLEXUS LITTER, TOP OPENING, FREESTANDING, SURFACE MOUNT, BLACK FINISH
6	TABLES AND SEATING (TYP)	TO BE DETERMINED AS PART OF FINAL DETAILED PLANS
7	TREE (TYP)	SPECIES TO BE DETERMINED AS PART OF FINAL DETAILED PLANS
8	LANDSCAPED AREA (TYP)	SPECIES AND GROUND COVER TO BE DETERMINED AS PART OF FINAL DETAILED PLANS
9	PROPERTY LINE (TYP)	N/A
10	PLANTER BED	PLANTINGS TO BE DETERMINED AS PART OF FINAL DETAILED PLANS

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4-UP PLANNED DEVELOPMENT
FOR
TOMISH DEVELOPERS, LLC
822 MAIN ST, LAFAYETTE, IN 47901

MARK	DATE	DESCRIPTION
	07/14/2022	PLANNED DEVELOPMENT - PRELIMINARY PLAN

PROJECT NO:	21042
FILE:	21042-LANDSCAPE.DWG
DRAWN BY:	HTKN
CHECKED BY:	CSK

LOCATION:
A PART OF THE NORTHEAST QUARTER OF SECTION 19, TOWNSHIP 23 NORTH, RANGE 4 WEST, CITY OF WEST LAFAYETTE, WABASH TOWNSHIP, TIPPECANOE COUNTY, INDIANA

TITLE:
LANDSCAPE PLAN

L101

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NOTE: RENDERINGS ARE A DESIGN TOOL INTENDED TO CONCEPTUALLY REPRESENT THE BUILDING AND SITE. RENDERINGS WILL NOT BE USED FOR CONSTRUCTION. THE ELEVATION DRAWINGS AND OTHER CONSTRUCTION PLANS SHALL BE USED FOR SPECIFIC INSTRUCTION ON THE DESIGN INTENT AND MATERIALS.

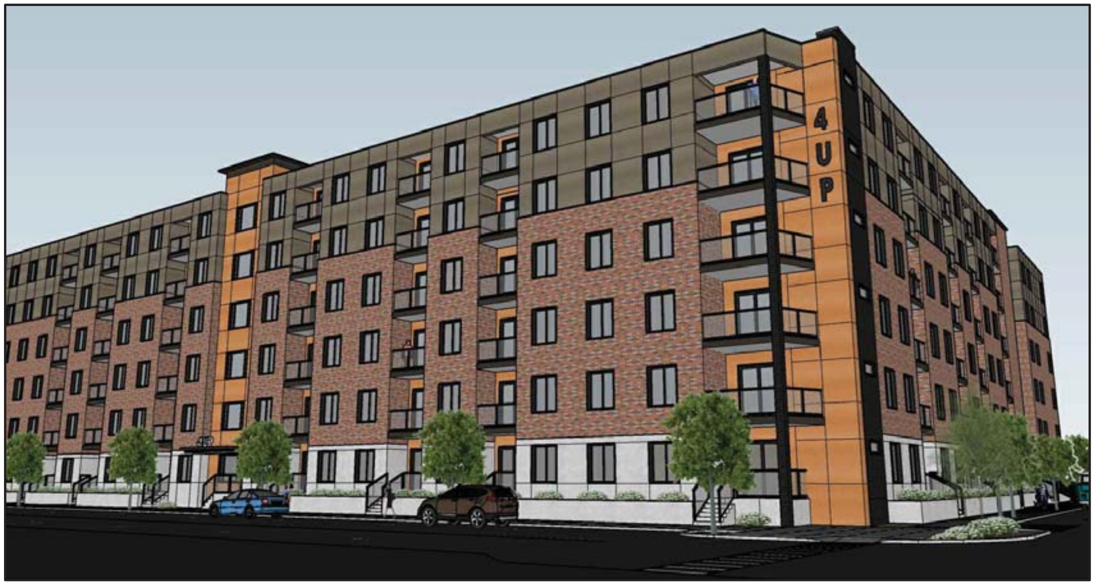


IMAGE FROM FOWLER-VINE INTERSECTION

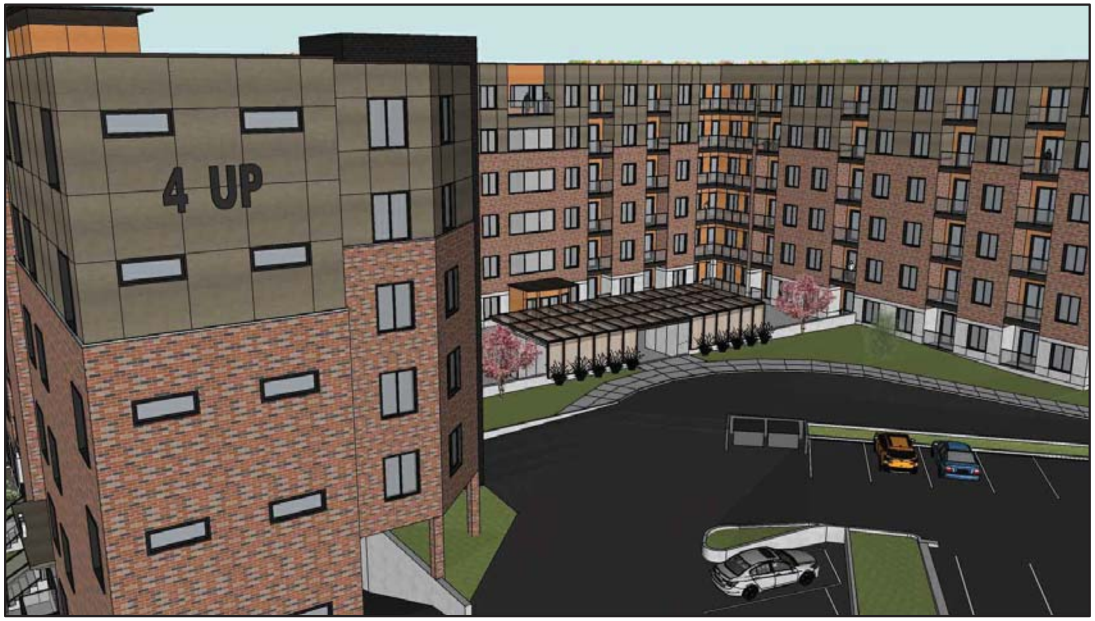
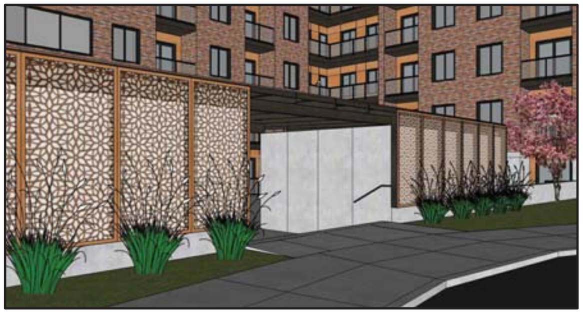


IMAGE FROM FOWLER @ ALLEY ENTRY



TRELLIS CANOPY IMAGE @ COURTYARD

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ARCHITECTS ENGINEERS
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LAFAYETTE, IN 47901
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SEAL:

PRELIMINARY PLAN
NOT FOR CONSTRUCTION

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PROJECT:

OMALLEY - 4 UP APARTMENTS
NEW APARTMENT BUILDING

Fowler Avenue
West Lafayette, Indiana 47906

REV.	DATE	REV. BY	DESCRIPTION
	01-27-22		DRAFT PLAN
	04-22-22		PRELIMINARY PLAN

DRAWN BY: JKF
CHK'D BY: AAS
PLOT DATE: June 24, 2022
PROJ. NO.: C-20031
SHEET NAME: 3D IMAGES
SHEET NUMBER: A100

Z-2848
4-UP, LLC - 4-UP PLANNED DEVELOPMENT
R3W & CBW to PDMX

Staff Report
August 11, 2022

REQUEST MADE, PROPOSED USE, LOCATION:

Petitioner, represented by attorney Dan Teder, is requesting PDMX zoning on approximately 1.16 acres for a single-lot planned development consisting of a proposed six-story multi-family apartment building containing a maximum of 191 units with 334 bedrooms (with option to convert up to 1,382 square feet of ground floor residential space to commercial use) and a 107-space underground parking garage. This site is located on roughly the east half of the block bounded by Fowler Avenue, Vine Street, Wiggins Street, and Northwestern Avenue in the City of West Lafayette; Wabash 19(NW) 23-4.

ZONING HISTORY AND AREA ZONING PATTERNS:

The property in this case is presently zoned R3W and CBW. Rezoning activity in the vicinity has largely been limited to Planned Developments (Fowler Avenue Apartments Z-2736, Hi-Vine Z-2641, Morris Rentals Z-2526). A mix of multi-family residential, commercial, and mixed-use zoning surround the subject property.

AREA LAND USE PATTERNS:

The rezone site area is currently improved with low-rise, multi-family apartment buildings. This section of West Lafayette's downtown area has been redeveloping in a more intense fashion for many years with numerous high and mid-rise mixed-use projects surrounding the subject property.

PARKING AND TRANSPORTATION:

According to the adopted *Thoroughfare Plan*, Northwestern Avenue, Fowler Avenue, and Wiggins Street are urban, primary arterials while Vine Street is an urban local road. Required rights-of-way are already in place for all streets. To improve traffic flow, access, and safety, the two public alleys presently on the site will be consolidated into a single alley (which will form the western boundary of the site, wrapping the Theta Nu Kappa Delta house). This new alley will vary in width from 22-feet to 24-feet and provide parking and delivery access to both the sorority house and the 4-UP apartment building.

ENVIRONMENTAL AND UTILITY CONSIDERATIONS:

Public utilities are available to serve the site.

STAFF COMMENTS:

According to the *West Lafayette Downtown Plan*, this block (block 1) is located in the "Downtown Village" land use category which supports a variety of mid-density residential and mixed-use developments.

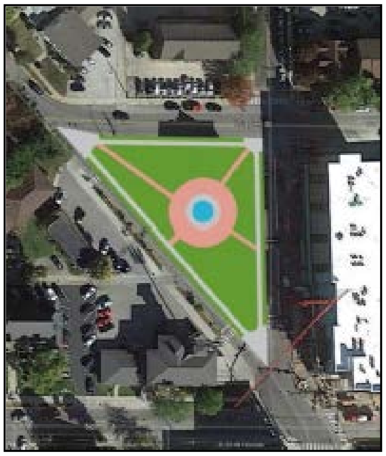
The land use plan chapter of the *Downtown Plan* has specific details on how new development should take shape:

> *"This block is at an important crossroads, a place where the downtown meets the university and the New Chauncey neighborhood…Any redevelopment on this block should make use of existing alleys to provide rear-loaded vehicle access, minimize street curb cuts and protect the pedestrian orientation of the streetscape."*

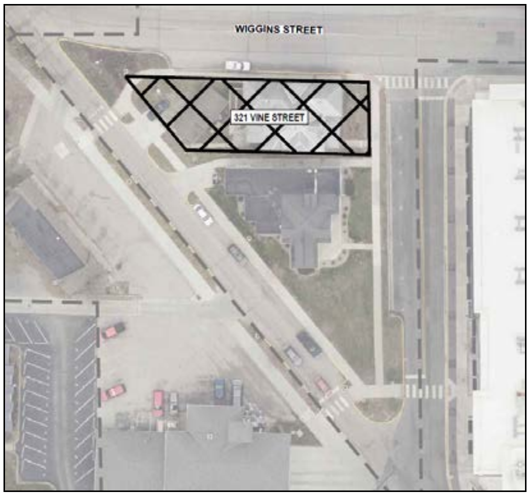
With the consolidation of the existing narrow alleys into a single wider alley, vehicle movements through the site will be greatly improved all while protecting the block's pedestrian-oriented streetscapes. The project also incorporates ground-floor walk-out units, widened sidewalks and streetscape elements, and private amenity spaces both inside and outside the building.

Another element of the *Downtown Plan* that is being supported by this project is the contribution of part of a planned park space option for Block 6, just south of the subject property across Wiggins Street. According to the *Downtown Plan*, this triangular block's park option:

> *"…could be designed any number of ways: landscaped and hardscaped spaces, opportunities for seating, fountains, public art, etc."* (plan concept image at right)



With the development of the 4-UP project, the northern portion of the triangular block (shown below as 321 Vine Street) will be cleared, the existing houses demolished, the land seeded with grass and the property transferred to the City of West Lafayette.



Fulfilling multiple policy prescriptions found in the *Downtown Plan*, the 4-UP Planned Development is an ideal fit for West Lafayette's downtown.

STAFF RECOMMENDATION:

Approval, contingent on meeting all requirements of *UZO* 2-28-10 for submission of Final Detailed Plans, signed off by those noted in that section to include:

1. All sheets (other than preliminary plat) that make up the approved Preliminary Plan;
2. Planned Development construction plans per UZO Appendix B-2;
3. A final plat per UZO Appendix B-3-2 as applicable, which includes all required right-of-way vacations/dedications;
4. Planned Development construction plans per UZO Appendix B-2;
5. Appropriate surety submitted with Final Detailed Plans;
6. Final landscape plan and plant schedule, in general conformity with the approved Preliminary Plans, shall be approved by the Greenspace Administrator with the submission of the Final Detailed Plans;
7. A final MOT plan, subject to the approval of the Administrative Officer, shall be submitted with the Final Detailed Plans;
8. An application for addressing of the units shall be made to APC prior to the submission of the Final Detailed Plans as required;
9. FAA Determination shall be submitted with the Final Detailed Plans;
10. Per the narrative in the Preliminary Plans, the “321 Vine Street” area is to be demolished, seeded with grass, conveyed, and transferred to the City of West Lafayette “…at or about the time that construction of the Project is completed.” As occupancy permits follow the completion of construction, no occupancy permits shall be granted for the Project until the developer has fulfilled the conditions for the “321 Vine Street” area as specified in the Preliminary Plan narrative.